

Justification Review Document**for an Exception to Fair Opportunity- FAR Part 16.505(b)(2)**

Program/Equipment: Continuity of Services for the 82nd Airborne Division, Fort Liberty, NC for Multi-Function Devices (MFDs), W91247-19-F-0819 P00009

Authority: 10 U.S.C. 2304(c) as implemented by FAR 16.505(b)(2)(C) - The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order.

Amount: \$160,735.60

Prepared by:

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Contract Specialist

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Information Systems Tech, G6

Date:

[REDACTED]

Requirements:

[REDACTED]

[REDACTED]:

Information Systems Tech, G6

Date:

[REDACTED]

Legal Counsel:

[REDACTED]

[REDACTED]

Command Judge Advocate

Date:

[REDACTED]

Justification and Approval
for Other than Full and Open Competition – FAR Part 6.302

1. Contracting Activity:

The U.S. Army Mission and Installation Contracting Command (MICC) - Fort Bragg, Building 2-1731 Stiner Road, Fort Bragg, NC 28310.

2. Description of Action:

- a. The 82nd Airborne Division requests a continuity of services for Contract W91247-19-F-0819. The Government will require continued performance of services within the limits and at the rates specified in the contract with incumbent MicroTechnologies, LLC, 8330 Boone Blvd, Tysons, Virginia 22182-2658, on a firm-fixed-price type basis, for an additional period of performance of 2 months for the 82nd Airborne Division, for the continued use, maintenance, supplies and support of Multifunctional Devices (MFDs) required across the organization, all of which are located at Fort Bragg, NC.
- b. The current MFD's were originally leased under ITES-3H with a five-year term under a competitive task order that expired on 15 September 2024. A continuation of services under FAR 52.217-8 will expire on 15 March 2025 and exercising FAR Clause 52.237-3, Continuity of Services, will be required from 16 March 2025 through 15 May 2025 to avoid a gap in services while the replacement contract will be competitively procured by DLA for a follow-on contract.
- c. The Government projects a modification to be executed by 16 March 2025 utilizing fiscal year 2025 Operations and Maintenance Army funds in the amount of \$160,614.00 for services from 16 March 2025 to 15 May 2025.
- d. FAR 52.217-8 was executed in order to comply with Army policy that came out 17 November 2023 that requires MFD orders to be procured by DLA. This extension expires 15 March 2025. The 82nd Airborne Division has coordinated with DLA for the follow-on contract, but with the DLA lead time required to put the new contract in place and services will not start with DLA until 16 May 2025. Therefore, the 82nd Airborne Division requires a modification of the contract by exercising the FAR Claus 52.237-3, Continuity of Services until 15 May 2025 to utilize the extended period to establish phase in and phase out time between the two contractors: the incumbent and the follow-on.

3. Description of Supplies/Services:

Continuity of Services is required to allow for uninterrupted service to cover the lead time DLA requires to place a competitive order for the follow-on requirement.

Period of Performance: 16 March 2025 – 15 May 2025

Total Value: \$160,735.60

4. Authority Cited:

10 U.S.C. 2304(c), as implemented by FAR 16.505(b)(2), The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order.

5. Reason for Authority Cited:

Task order W91247-19-F-0819 was competed as a 100% Small Business Set-Aside on CHESS ITES-3H and awarded to MicroTechnologies, LLC on 16 September 2019. All eligible small businesses were provided fair opportunity to compete for that order. The period of performance of the current task order expires on 15 March 2025.

a. As the incumbent contractor, MicroTechnologies currently has 460 MFD's already fielded with the contractor providing maintenance. Award to a new vendor would require considerable startup costs to field new MFD's which would only be needed for a very short period until DLA awards the long term 5-year follow-on contract. The entire period of performance would be primarily comprised of phase in and phase out, with the government purchase or lease of new machines as opposed to simply maintaining the ones already in place.

b. The extension provides a window during which both the incumbent and follow-on contractors can operate in a phased manner and maintain operational continuity, especially in critical areas.

(1) Alternatives: Break in service: A break in service is not a viable option. A 2 months extension avoids a break in MicroTechnologies support services and avoids the inefficiency of transitioning vendors for this short interim period. MicroTechnologies LLC can proceed without delays or disruption until a new competitive award can be transferred to DLA.

(2) Impact if justification is not approved: The services are extremely vital to the Army. Combat readiness would be adversely affected if these services were

disrupted. Ensuring that MicroTechnologies continues to provide these services uninterrupted will prevent the Division's Mission from becoming disrupted. Continuity of service during this period is essential to the 82nd Airborne Division mission.

6. Efforts to Obtain Competition:

The Contracting Officer shall publish the notices required by FAR 5.201 and any bids or proposals received shall be considered.

a. Effective Competition: Because this is a sole source action, effective competition is not applicable.

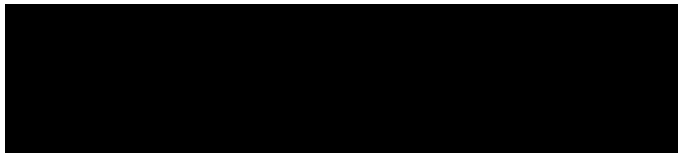
b. Actions to Increase Competition: N/A

7. Market Research:

A replacement contract will be competitively procured by DLA.

8. Technical Certification:

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

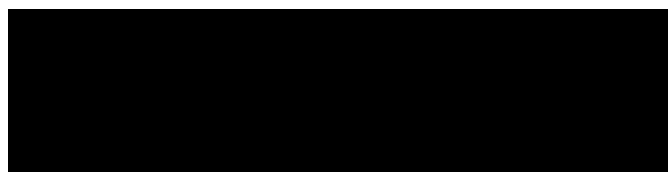


Contract Officer Representative

Date: See digital signature

9. Requirements Certification:

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.



Contract Officer Representative

Date: See Digital Signature

10. Fair and Reasonable Cost Determination:

I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable. This determination will be made using price analysis. As a part of this basis, certified cost or pricing data will not be required and the following exception applies (FAR 15.403): The estimated cost of the contract action is less than the threshold for certified cost or pricing data.

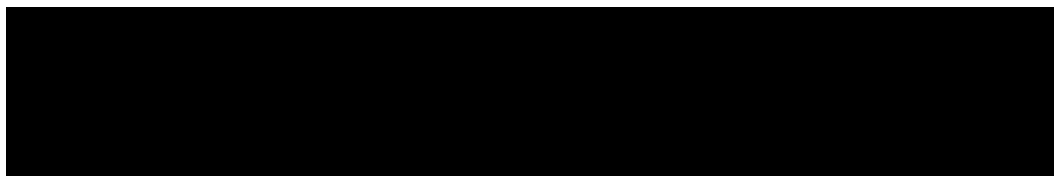


Contracting Officer

Date: See digital signature

11. Contracting Officer Certification:

I certify that this justification is accurate and complete to the best of my knowledge and belief. I hereby approve the above-described procurement based on the exception described herein, subject to available funding, and provided that the services described herein have otherwise been authorized for procurement.



Contracting Officer

Date: See digital signature